

Track 6 — Post-ROLAND Playbook (conditional, realistic)

Precondition: Track 1 has resulted in a Deckungszusage from ROLAND, at least partially. Without insurance cover, none of this is economically rational for an individual.

Scope reminder: Restoration of access has already happened. GitHub has already acknowledged the action was an automated false-positive. Whatever is pursued from here is incremental: documentary closure, modest damages, possibly a compliance ruling. Nothing in this track will produce a public apology, a media campaign against Microsoft, a regulator-published "report on bias", or a court-ordered statement of vindication. Those outcomes are not available through the German civil/administrative system for the situation on file.

6.1 — Engage Fachanwalt für IT-Recht (or Medienrecht) with narrow written mandate

The mandate to the lawyer matters more than the lawyer's enthusiasm. Suggested mandate, in writing:

"Pursue, within the scope of legal-protection insurance cover granted by ROLAND under policy 1.29.1042136 / claim S-26-01720899, the following specific remedies against GitHub Inc. and/or Microsoft entities in respect of the account 'skovnats' restriction of 7-24 April 2026:

- (a) full refund of GitHub Pro subscription fees collected during the inaccessibility period, including any related charges (Copilot, Actions); legal basis § 812 BGB;
- (b) a written acknowledgment, signed by an authorised representative, that the restriction was the result of an erroneous automated determination and was reversed without identifying any breach of terms attributable to the account holder; this acknowledgment to be in a form suitable for presentation to third parties;
- (c) if and only if (a) and (b) are not provided extrajudicially, modest damages under §§ 280, 241(2) BGB for the period of impaired contractual performance;
- (d) cessation of the lawyer's mandate once (a)+(b) are obtained, or upon a clear cost-benefit assessment that further action would be disproportionate."

This is a small, tractable mandate. It is not a "case to make a precedent". The lawyer's time is the insurance's money — keep the mandate disciplined.

Realistic outcome: small refund (single-digit euros), a one-paragraph written acknowledgment, and a closed file. Total elapsed time: 1-3 months.

6.2 — File a Verbraucherbeschwerde with BlnBDI on the GDPR side (if GitHub Track 2 response is inadequate)

If GitHub's GDPR Art. 15 response (Track 2) is incomplete, evasive, or non-existent by 27 June 2026, a complaint to the Berliner Beauftragte für Datenschutz und Informationsfreiheit (BlnBDI) is free and proportionate.

Realistic outcomes from BlnBDI complaint:

- An administrative review of GitHub's response.
- A compliance order requiring GitHub to provide complete Art. 15 information, in particular Art. 22(3) information about the automated decision.
- In a less likely scenario, a modest administrative fine.

What BlnBDI does NOT do:

- Conduct a population-wide bias audit on a single complaint.
 - Publish a report on a specific platform's algorithms.
 - Issue findings about "false positives across legitimate researchers" — that is a research project, not a regulator's role.
 - Compel a public apology.
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6.3 — File a complaint with the Digital Services Coordinator (BNetzA) on the DSA side

Parallel track to 6.2, addressing DSA Art. 17 non-compliance if GitHub does not provide a proper Statement of Reasons.

Realistic outcome: the DSC examines the case, may include the matter in its annual reporting (in aggregate form), and may engage with GitHub to ensure future compliance. For individual remedy, the DSC will likely direct the user to Art. 21 out-of-court dispute settlement.

6.4 — DSA Article 21 out-of-court dispute settlement (cheaper than civil court)

If GitHub continues to refuse a statement of reasons or refund extrajudicially, Article 21 DSA provides a cheap, structured route: a certified out-of-court dispute settlement body mediates between the user and the platform. If the body rules in the user's favour, the platform bears the cost. The user pays nothing or a nominal fee in either outcome.

Realistic outcome: a binding (for the user, technically non-binding for the platform but practically influential) finding on the specific dispute. Faster and lower-cost than civil litigation.

What about Urteilspublikation, public regulator audits, and similar?

Urteilspublikation

Urteilspublikation in German law applies in narrowly defined statutory contexts: unfair competition (§ 12 UWG), trade-mark and copyright (§§ 19, 103 UrhG / MarkenG), trade-secret protection (§ 19 GeschGehG), and certain defamation contexts. It requires (i) an underlying judgment in such a context, and (ii) a continuing public misrepresentation about the plaintiff that the publication of the judgment serves to correct, and (iii) proportionality.

In the present matter:

- The underlying action does not fall into any of the named statutory contexts. A consumer-contract or damages claim under §§ 280, 812 BGB does not trigger Urteilspublikation.
- There is no continuing public misrepresentation about the account holder. The restriction was not accompanied by a public statement; the account simply returned a 404 to visitors and was restored within 17 days.
- The opposing party (GitHub) has already acknowledged the action as an automated false-positive in writing, satisfying the corrective function that publication would otherwise serve.

A request for Urteilspublikation in this matter would not be granted by any German civil court on the available facts. A Fachanwalt would advise against making the request, because it weakens the rest of the case by signalling unrealistic expectations.

A regulator-published audit of GitHub's algorithms

This is not within the regulators' role. BlnBDI investigates GDPR compliance in specific cases. The DSC at BNetzA monitors DSA compliance and reports in aggregate. Neither produces "an audit of GitHub's algorithms" on the basis of an individual complaint. DSA Article 40 researcher access — which approaches this in spirit — is available only to vetted researchers from recognised institutions for VLOPs, and GitHub is not a designated VLOP.

What does actually work for reputation rehabilitation

This is the honest answer, separate from the litigation track.

Reputation in the IT/research community is built and rebuilt through the same mechanism: ongoing visible work. Specifically:

- **Continued publication.** Zenodo/SVE corpus continues to accumulate independently of any individual platform incident. Every preprint added is permanent and citable.
- **Independent platforms.** Maintain mirrors on GitLab, Codeberg, personal infrastructure. Platform diversity reduces the impact of any single platform's automated systems on visibility.
- **Conference presence.** A talk at a venue like FOSDEM, CCC, re:publica, or an academic conference (IEEE S&P, USENIX Security, FAccT for the algorithmic-fairness angle) does more for visibility than any court judgment would.
- **The case study itself, written up properly.** If Track 0 / Track 2 / Track 3 reveal that the incident was caused by IP-neighbourhood reputation cascading across platforms, that is a publishable finding. A short, sober write-up — "False-positive flagging of legitimate researchers on developer and open-science platforms: a documented case and methodological note" — submitted to a venue like FAccT, AIES, or a workshop, advances the field and Your standing in it. This is the SVE-coherent path.
- **No association of personal vindication with platform conflict.** The strongest professional position is one where moderation incidents on commercial platforms are simply noted, investigated, written up if interesting, and not allowed to dominate the public profile. Many serious researchers have had platform issues; almost none make those issues the centre of their public identity, and that restraint is itself a credibility signal.

None of the above requires anyone's permission, no court ruling, no insurance cover, no regulator decision. All of it is in your hands today.

Time and emotional budget for Track 6

Total realistic effort if pursued: 5–15 hours over 3 months, mostly responding to the lawyer and to regulator correspondence.

If the choice presents itself between (a) ten more hours invested in Track 6 disputes, or (b) ten more hours spent writing one more preprint, advancing the SVE-corpus by another chapter, or preparing a conference talk — option (b) yields more for actual professional standing than option (a).

This is not advice to abandon Track 6 — extracting the refund and the written acknowledgment is reasonable closure. It is advice to keep the proportions right.